

Administrative Authority, Procedure, and the Record: A Framework for Evaluating Federal Agency Action

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Delonte D. Kelly

Kelly Legacy Institute

Office of the Fiduciary

Kelly Legacy Estates LLC

Wilmington, Delaware, United States

[ORCID: 0009-0002-6556-6542](https://orcid.org/0009-0002-6556-6542)

[Email: office@kellylegacyestates.com](mailto:office@kellylegacyestates.com)

kellylegacyestates.com

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Abstract

This paper develops a disciplined analytical sequence for evaluating federal agency action: statute, delegation, procedure, record, finality, and review. Federal administrative law is frequently approached by researchers, journalists, and institutional administrators as a body of substantive outcomes to be located and cited, rather than as a system of authority, process, and accountability. This approach produces analysis that is disconnected from the statutory source of agency power, the procedural posture of the document under examination, and the administrative record that actually supports the agency's decision. This paper argues that a defensible evaluation of any agency action must begin with the enabling statute and trace, in sequence, the scope of delegated authority, the governing procedural framework under the Administrative Procedure Act, the contents and completeness of the administrative record, the finality of the action under review, and the availability and scope of judicial review.

The paper examines the foundational provisions of the Administrative Procedure Act, 5 U.S.C. §§ 551, 553-557, 701-706, and the leading judicial decisions construing them, including *SEC v. Chenery Corp.*, *Citizens to Preserve Overton Park v. Volpe*, *Vermont Yankee Nuclear Power Corp. v. NRDC*, *Motor Vehicle Manufacturers Ass'n v. State Farm Mutual Automobile Insurance Co.*, *Heckler v. Chaney*, *Darby v. Cisneros*, *Bennett v. Spear*, and *Loper Bright Enterprises v. Raimondo*. It then translates this doctrinal framework into a nine-step primary-source research methodology intended for legal researchers, administrative-law students, public-record researchers, institutional administrators, policy researchers, journalists, and fiduciary-governance researchers. The paper's contribution is methodological rather than doctrinal: it does not propose new substantive rules of administrative law, but rather a repeatable sequence for reading, classifying, and evaluating administrative records and agency action so that conclusions remain traceable to statute, procedure, and record.

Keywords: Administrative Law; Administrative Procedure Act; Federal Agencies; Administrative Record; Judicial Review; Final Agency Action; Rulemaking; Agency Adjudication; Primary Source Research; Delegated Authority; Arbitrary and Capricious Review; Exhaustion of Administrative Remedies.

Table of Contents

Abstract	2
I. Introduction	4
II. Statutory Authority and Delegated Power	4
III. Procedural Classification	5
IV. Rulemaking Under 5 U.S.C. § 553	5
V. Administrative Adjudication	7
VI. The Administrative Record	8
VII. Reasoned Decision-Making	8
VIII. Final Agency Action	9
IX. Exhaustion and Administrative Remedies	9
X. Reviewability	10
XI. Judicial Interpretation After Loper Bright	10
XII. Primary-Source Research Framework	12
XIII. Institutional Governance and Record Discipline	13
XIV. Application: How to Read a Federal Register Document	13
XV. Conclusion	14
Authorities Cited	14

I. Introduction

Researchers investigating federal agency action commonly begin at the wrong point in the analysis. A researcher encounters a regulation, an agency memorandum, a press statement, or a disputed government decision, and moves directly to interpreting its substance without first establishing the four questions that determine what the document actually is and what weight it can bear: what statute authorizes the agency to act; what procedure governed the action's creation; what administrative record supports it; and whether the action is final and subject to review. Substantive interpretation performed before these threshold questions are answered is analytically unstable, because the same words carry different legal consequences depending on their procedural posture. A notice of proposed rulemaking, a final rule, a guidance document, and an adjudicatory order are not interchangeable categories of evidence, even where they address the same subject matter and use similar language.

This paper develops and defends a six-stage analytical sequence for evaluating federal agency action: **statute, delegation, procedure, record, final action, and review**. The sequence is offered as a research methodology, not as a substitute for jurisdiction-specific legal analysis or for the advice of licensed counsel. Its purpose is to discipline the order of inquiry so that conclusions about agency authority remain traceable to primary sources rather than to inference, paraphrase, or secondary commentary.

Administrative law is often taught and discussed as a body of substantive doctrine — the rules governing when an agency may regulate a given subject. It is equally, and for research purposes more fundamentally, a system governing *authority, process, reasoned decision-making, records, accountability, and review*. A researcher who treats the Administrative Procedure Act (“APA”)¹ solely as a source of substantive rights will miss the structural questions that determine whether a given agency document is binding, persuasive, reviewable, or merely preliminary.

II. Statutory Authority and Delegated Power

The analysis begins with 5 U.S.C. § 551, which supplies the APA's foundational definitions.² Section 551 defines an “agency” broadly as each authority of the Government of the United States, subject to enumerated exceptions for Congress, the courts, the governments of territories and possessions, and certain military and foreign-affairs functions.³ It further defines “rule,” “rule making,” “order,” “adjudication,” “license,” “sanction,” and “agency action” — a set of terms that recur throughout §§ 553-706 and that carry distinct procedural consequences.

¹5 U.S.C. §§ 551 *et seq.*, enacted 1946, codified at Title 5. [READ 5 U.S.C. ch. 5 →](#)

²5 U.S.C. § 551(1)-(13). [READ 5 U.S.C. § 551 →](#)

³5 U.S.C. § 551(1)(A)-(H). [READ 5 U.S.C. § 551 →](#)

A recurring analytical error is to conclude that an entity ceases to be an “agency” once it acts beyond the scope of its statutory authority, or that an ultra vires action is somehow non-agency action. That is incorrect. An entity that meets the § 551(1) definition remains an “agency” regardless of whether a particular exercise of power is authorized. The question of authority is not a question of status; it is a question of whether a specific action falls within the scope of power Congress delegated to that agency. Where an agency acts in excess of statutory jurisdiction, authority, or limitations, the action remains agency action, but it is vulnerable to being held unlawful and set aside under 5 U.S.C. § 706(2)(C).

The threshold research question is therefore not “is this an agency,” but “*what did Congress authorize this agency to do?*” Answering that question requires locating the enabling statute, reading its grant of authority, and identifying any express limitations, exceptions, or conditions Congress attached to that grant. Delegation analysis is inseparable from the statutory text; general statements of agency mission or purpose are not, by themselves, grants of regulatory or adjudicatory power.

III. Procedural Classification

Because different categories of agency documents carry different legal consequences, a researcher must correctly classify the document under review before analyzing its substance. Documents commonly encountered include: notices; guidance documents; notices of proposed rulemaking; final rules; adjudicatory orders; licensing decisions; enforcement actions; items on the Unified Regulatory Agenda; internal agency memoranda; Federal Register publications; and provisions of the Code of Federal Regulations (“CFR”). These categories are not interchangeable. A guidance document, for example, does not carry the force of law in the way a final rule promulgated through notice-and-comment rulemaking does, and interpretive rules and general statements of policy are exempt by the statute’s own terms from § 553’s notice-and-comment requirements.

The principal procedural framework governing rulemaking is 5 U.S.C. § 553, addressed in Part IV below. Adjudication is addressed separately under §§ 554, 556, and 557, in Part V. A researcher’s first task with any agency document is therefore to ask: is this a proposed rule, a final rule, a guidance document, an adjudicatory order, or something else — and what procedural regime, if any, governed its production?

IV. Rulemaking Under 5 U.S.C. § 553

Section 553 supplies the default procedural framework for informal (“notice-and-comment”) rulemaking.⁴

⁴5 U.S.C. § 553. [READ 5 U.S.C. § 553 →](#)

§ 553(a) exempts matters relating to military or foreign affairs functions and matters relating to agency management or personnel, public property, loans, grants, benefits, or contracts, from the section's requirements.⁵

§ 553(b) requires general notice of proposed rulemaking to be published in the Federal Register, including the time, place, and nature of the proceedings; the legal authority under which the rule is proposed; and either the terms or substance of the proposed rule or a description of the subjects and issues involved. Section 553(b) exempts interpretive rules, general statements of policy, and rules of agency organization, procedure, or practice, as well as situations in which the agency finds and states good cause that notice and public procedure are impracticable, unnecessary, or contrary to the public interest.⁶

§ 553(c) requires the agency to give interested persons an opportunity to participate through submission of written data, views, or arguments, and to incorporate in the rules adopted a “concise general statement of their basis and purpose.”⁷ The statutory text does not itself require an agency to respond to every significant comment received. That obligation is a judicial gloss developed through case law addressing reasoned decision-making and meaningful opportunity for public participation, discussed further in Part VII below, and should not be cited as though it were express statutory text.

§ 553(d) generally requires publication of a substantive rule not less than thirty days before its effective date, subject to enumerated exceptions.⁸ § 553(e) requires agencies to give interested persons the right to petition for the issuance, amendment, or repeal of a rule.

The Supreme Court's decision in *Vermont Yankee Nuclear Power Corp. v. NRDC*, 435 U.S. 519, 524 (1978), establishes that reviewing courts generally may not impose procedural requirements on agency rulemaking beyond those supplied by the APA, the Constitution, the agency's enabling statute, other applicable statutes, or the agency's own binding rules — holding that agencies are free to grant additional procedural rights in the exercise of their discretion, but that reviewing courts are generally not free to impose them if the agency has not chosen to grant them.⁹ *Vermont Yankee* is frequently oversimplified as holding that “the APA is merely a floor” for procedural requirements; the more precise proposition is narrower and more limited: courts sitting in review of informal rulemaking are not free to invent additional procedural devices as a matter of judicial policy preference, because doing so intrudes on the choice Congress made in structuring the rulemaking process.

⁵5 U.S.C. § 553(a)(1)-(2). [READ 5 U.S.C. § 553\(a\) →](#)

⁶5 U.S.C. § 553(b)(A)-(B). [READ 5 U.S.C. § 553\(b\) →](#)

⁷5 U.S.C. § 553(c). [READ 5 U.S.C. § 553\(c\) →](#)

⁸5 U.S.C. § 553(d)(1)-(3). [READ 5 U.S.C. § 553\(d\) →](#)

⁹*Vermont Yankee Nuclear Power Corp. v. NRDC*, 435 U.S. 519, 524 (1978) — pincite verified against official text. [VIEW U.S. REPORTS \(GOVINFO\) →](#)

A related, narrower question under § 553 is whether an agency may amend or repeal an *interpretive* rule without notice-and-comment procedures, since interpretive rules are themselves exempt from § 553(b)'s requirements. In *Perez v. Mortgage Bankers Ass'n*, 575 U.S. 92 (2015), the Supreme Court held that agencies are not required to use notice-and-comment procedures to amend or repeal an interpretive rule, rejecting the line of D.C. Circuit precedent (the so-called *Paralyzed Veterans* doctrine) that had required notice-and-comment for changes to interpretive rules that adopted a definitive interpretation of a regulation.¹⁰ *Perez* confirms that the § 553(b) exemption for interpretive rules applies according to its terms, without a judicially engrafted exception for rules that displace a prior definitive interpretation; a researcher classifying a rule under Step 2 of the framework in Part XII should therefore not assume that revising an existing interpretive rule triggers notice-and-comment merely because the prior interpretation was long-standing or heavily relied upon.

V. Administrative Adjudication

Formal adjudication is governed principally by 5 U.S.C. §§ 554, 556, and 557. Section 554 applies to adjudications required by statute to be determined on the record after opportunity for an agency hearing, subject to enumerated exceptions.¹¹ Sections 556 and 557 govern the conduct of the hearing, the presiding official, the evidentiary record, initial and recommended decisions, and the process by which the agency reviews the presiding official's decision.

A frequent research error is to treat 5 U.S.C. § 557(d) as a blanket prohibition on all *ex parte* communications involving an agency. The provision is narrower: it restricts *ex parte* communications relevant to the merits of a proceeding between interested persons outside the agency and agency decision-makers, in adjudications and rulemakings required to be decided on the record, and prescribes procedures for handling any such communications that do occur, including placing them on the public record.¹² It is not a general bar on all agency contact with outside parties, and it applies to a defined category of on-the-record proceedings rather than to agency action generally.

A related error is to assert, as an absolute rule, that “what is not in the record does not count.” Record-based review is the general norm, discussed in Part VI, but courts recognize doctrines permitting record completion, limited supplementation, and, in defined circumstances, extra-record inquiry — for example, where the agency has failed to explain its action sufficiently to permit judicial review, where there is a strong showing of bad faith or improper behavior, or where the case involves a claim that cannot be resolved on the existing administrative record, such as certain constitutional claims. These doctrines are exceptions

¹⁰*Perez v. Mortgage Bankers Ass'n*, 575 U.S. 92 (2015). [VIEW U.S. REPORTS \(GOVINFO\) →](#)

¹¹5 U.S.C. § 554(a)(1)-(6). [READ 5 U.S.C. § 554 →](#)

¹²5 U.S.C. § 557(d)(1)(A)-(E). [READ 5 U.S.C. § 557 →](#)

bounded by case law within the applicable circuit and do not eliminate the general rule of record-based review.

VI. The Administrative Record

The administrative record occupies a central position in this framework because it is, in the overwhelming majority of cases, the universe of material a reviewing court will consider in evaluating agency action. In *Citizens to Preserve Overton Park, Inc. v. Volpe*, 401 U.S. 402 (1971), the Supreme Court held that judicial review under the arbitrary-and-capricious standard requires a reviewing court to engage in a “thorough, probing, in-depth review” of the decision, based on the full administrative record that was before the agency at the time it made its decision.¹³ *Overton Park* stands for the proposition that review is ordinarily confined to the record actually before the decision-maker, that the reviewing court should not substitute its judgment for the agency's, and that the agency's contemporaneous reasoning — not post hoc rationalizations offered by counsel during litigation — is the proper object of review.

This last principle traces to *SEC v. Chenery Corp.*, 318 U.S. 80 (1943), which holds that the validity of an agency order must be judged on the grounds upon which the record discloses that the agency's action was actually based, not on grounds supplied later by counsel; if those grounds are inadequate or improper, a reviewing court is powerless to affirm the action on a different basis that the agency itself did not invoke, even if that different basis might independently justify the result.¹⁴ *Chenery* and *Overton Park* together establish the institutional principle developed in this paper:

“The quality of administrative review depends on the quality and completeness of the record available for review.” This is offered as an analytical proposition synthesizing *Chenery* and *Overton Park*, not as a direct quotation of either opinion or as codified statutory text, and it should be understood and cited accordingly.

VII. Reasoned Decision-Making

The arbitrary-and-capricious standard of review is codified at 5 U.S.C. § 706(2)(A), which directs a reviewing court to hold unlawful and set aside agency action found to be “arbitrary, capricious, an abuse of discretion, or otherwise not in accordance with law.”¹⁵ The governing doctrinal standard is supplied by

¹³*Citizens to Preserve Overton Park, Inc. v. Volpe*, 401 U.S. 402, 415-16 (1971) — pincite verified against official text. [VIEW U.S. REPORTS \(GOVINFO\)](#) →

¹⁴*SEC v. Chenery Corp.*, 318 U.S. 80, 87 (1943) (official syllabus: ‘the validity of the order of the Commission must be judged on the grounds upon which the record discloses that its action was based’); accord *SEC v. Chenery Corp.* (‘*Chenery II*’), 332 U.S. 194, 196 (1947) (restating the rule as a requirement that a reviewing court judge the propriety of agency action solely by the grounds invoked by the agency). [VIEW U.S. REPORTS \(GOVINFO\)](#) →

¹⁵5 U.S.C. § 706(2)(A). [READ 5 U.S.C. § 706](#) →

Motor Vehicle Manufacturers Ass'n v. State Farm Mutual Automobile Insurance Co., 463 U.S. 29 (1983), which holds that an agency rule is arbitrary and capricious if the agency has relied on factors Congress did not intend it to consider, entirely failed to consider an important aspect of the problem, offered an explanation for its decision that runs counter to the evidence before it, or is so implausible that it could not be ascribed to a difference in view or the product of agency expertise.¹⁶

State Farm requires a reviewing court to examine whether the agency examined the relevant data and articulated a satisfactory explanation for its action, including a rational connection between the facts found and the choice made. An unexplained departure from prior agency policy is a relevant consideration under this standard, though State Farm does not impose a heightened burden of justification for policy changes as such; it requires only that the agency display awareness that it is changing position and supply a reasoned explanation for the new policy, including engagement with any reliance interests the prior policy may have engendered.

VIII. Final Agency Action

Judicial review under the APA is generally limited to “final agency action for which there is no other adequate remedy in a court.”¹⁷ The controlling two-part test for finality is supplied by *Bennett v. Spear*, 520 U.S. 154 (1997): first, the action must mark the “consummation” of the agency’s decision-making process, and must not be of a merely tentative or interlocutory character; and second, the action must be one by which rights or obligations have been determined, or from which legal consequences will flow.¹⁸

Finality is a distinct inquiry from standing, ripeness, exhaustion of administrative remedies, sovereign immunity, the existence of a special statutory review channel, and the availability of an adequate alternative remedy. A document can be final within the meaning of § 704 and still be unreviewable, or subject to a different review pathway, for one of these independent reasons. Researchers should resist collapsing these distinct doctrines into a single question of “is this reviewable.”

IX. Exhaustion and Administrative Remedies

In *Darby v. Cisneros*, 509 U.S. 137 (1993), the Supreme Court held that where the APA applies, courts may not require plaintiffs to exhaust optional administrative remedies before seeking judicial review of final

¹⁶*Motor Vehicle Mfrs. Ass'n v. State Farm Mut. Auto. Ins. Co.*, 463 U.S. 29, 43 (1983) — pincite verified against official text. [VIEW U.S. REPORTS \(GOVINFO\)](#) →

¹⁷5 U.S.C. § 704. [READ 5 U.S.C. § 704](#) →

¹⁸*Bennett v. Spear*, 520 U.S. 154, 177-78 (1997) (citing *Chicago & Southern Air Lines, Inc. v. Waterman S.S. Corp.*, 333 U.S. 103, 113 (1948), and *Port of Boston Marine Terminal Ass'n v. Rederiaktiebolaget Transatlantic*, 400 U.S. 62, 71 (1970)) — pincite verified directly against official text. [VIEW U.S. REPORTS \(GOVINFO\)](#) →

agency action under § 704, and that § 704 permits courts to impose an exhaustion requirement only where an agency rule requires an appeal to superior agency authority as a prerequisite to judicial review and, pending that appeal, renders the action being challenged non-final.¹⁹ Darby therefore distinguishes between exhaustion required by statute or a properly structured agency rule, which remains a valid precondition to review, and exhaustion imposed by courts as a matter of discretionary doctrine, which § 704 displaces once the APA applies. It is inaccurate to assert as a categorical matter either that exhaustion is always required or that it is never required; the answer depends on the specific statutory and regulatory scheme governing the agency and action at issue.

X. Reviewability

Sections 701 through 706 of Title 5 supply the general framework for judicial review of agency action. Section 701(a) excludes from APA review, first, agency action for which statutes preclude judicial review, and second, agency action committed to agency discretion by law.²⁰ In *Heckler v. Chaney*, 470 U.S. 821 (1985), the Supreme Court held that an agency's decision not to undertake enforcement action is presumptively unreviewable under § 701(a)(2), reflecting the traditional discretion enforcement agencies possess in allocating scarce resources, subject to rebuttal where the substantive statute has provided guidelines for the agency to follow in exercising its enforcement powers.²¹

Statutory preclusion under § 701(a)(1) can arise not only from express statutory text withdrawing review, but also from the structure of the statutory scheme, the statute's objectives, its legislative history, and the nature of the administrative action involved, including the existence of a special statutory review mechanism that Congress intended to be exclusive. It is therefore inaccurate to state that judicial review is available in all cases unless a statute expressly forbids it; reviewability analysis under § 701(a) requires examination of the entire statutory scheme, not the search for a single preclusive sentence.

XI. Judicial Interpretation After *Loper Bright*

In *Loper Bright Enterprises v. Raimondo*, 603 U.S. 369 (2024), the Supreme Court overruled the deference framework established in *Chevron U.S.A., Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837 (1984).²² Writing for the majority, the Court held that the APA's judicial-review provision, 5 U.S.C. § 706,

¹⁹Darby v. Cisneros, 509 U.S. 137, 153-54 (1993) — pincite verified against the official syllabus and opinion (discussion spans pp. 143-154). [VIEW U.S. REPORTS \(GOVINFO\)](#) →

²⁰5 U.S.C. § 701(a)(1)-(2). [READ 5 U.S.C. § 701](#) →

²¹*Heckler v. Chaney*, 470 U.S. 821, 831-32 (1985) — pincite verified against official text. [VIEW U.S. REPORTS \(GOVINFO\)](#) →

²²*Loper Bright Enterprises v. Raimondo*, 603 U.S. 369 (2024) (6-2, Roberts, C.J.), decided with the companion case *Relentless, Inc. v. Department of Commerce* — verified directly against the official slip opinion. [VIEW SUPREME COURT OPINION](#) →

requires courts to exercise independent legal judgment in deciding whether an agency has acted within its statutory authority, and that courts may not defer to an agency's interpretation of an ambiguous statute merely because the statute is ambiguous.

Loper Bright's holding is properly stated with several qualifications that researchers should preserve rather than collapse into a single sentence. First, the decision overrules Chevron deference specifically; it does not hold that agency interpretations are entitled to no weight whatsoever — the Court noted that such interpretations may still carry persuasive value under the pre-Chevron framework associated with *Skidmore v. Swift & Co.*, 323 U.S. 134 (1944).²³ Second, the decision does not disturb the separate principle, reflected in *State Farm*, that an agency's factual determinations and its application of law to particular facts remain entitled to a measure of respect on judicial review. Third, where Congress has expressly delegated discretionary authority to an agency, that express delegation remains a source of lawful agency discretion; Loper Bright addresses judicial deference on questions of statutory interpretation, not the existence of delegated rulemaking or adjudicatory authority as such. Fourth, the decision does not eliminate administrative agencies or their policymaking authority; it changes the standard a reviewing court applies when an agency's statutory interpretation is challenged. Framed doctrinally rather than politically, Loper Bright shifts interpretive primacy on questions of law to the courts while leaving the remainder of the framework developed in this paper — delegation, procedure, record, finality — substantially intact.

A distinct question, not addressed by Loper Bright, is how much weight a court gives an agency's interpretation of its *own* ambiguous regulation, as opposed to the statute the agency administers. That question is governed by *Kisor v. Wilkie*, 588 U.S. 558 (2019), which narrowed but did not eliminate the deference doctrine associated with *Auer v. Robbins*, 519 U.S. 452 (1997), and *Bowles v. Seminole Rock & Sand Co.*, 325 U.S. 410 (1945).²⁴ *Kisor* holds that a court may defer to an agency's reasonable reading of its own genuinely ambiguous regulation only after exhausting the traditional tools of construction, and only where the regulation is genuinely ambiguous, the agency's interpretation is reasonable, the interpretation reflects the agency's fair and considered judgment (rather than a post hoc litigating position), and the interpretation implicates the agency's substantive expertise. Regulatory deference under *Kisor* and statutory deference under the now-overruled Chevron framework were always analytically distinct doctrines resting on different premises — one concerns an agency's reading of its own text, the other concerned an agency's reading of a statute Congress wrote — and Loper Bright's overruling of Chevron does not, by its terms, disturb *Kisor*'s narrower framework for regulatory interpretation. A researcher applying Step 9 of the framework in Part XII should therefore keep these two deference inquiries analytically separate rather than treating Loper Bright as having resolved both.

²³*Skidmore v. Swift & Co.*, 323 U.S. 134 (1944). [VIEW SUPREME COURT OPINION →](#)

²⁴*Kisor v. Wilkie*, 588 U.S. 558 (2019). [VIEW U.S. REPORTS \(GOVINFO\) →](#)

XII. Primary-Source Research Framework

The doctrine surveyed in Parts II through XI translates into a nine-step research methodology.

Step 1 — Identify the Record. What document is actually being read? A press release, a Federal Register notice, a CFR provision, an adjudicatory order, and an internal memorandum are not interchangeable evidence.

Step 2 — Classify the Record. Is it a notice, a proposed rule, a final rule, an order, guidance, or an adjudicatory decision? Classification determines which procedural regime and which standard of review apply.

Step 3 — Locate Enabling Authority. What statute authorizes the agency to act in this area? Identify the specific section, not merely the agency's general organic statute.

Step 4 — Trace Delegation. Which agency, bureau, official, or adjudicator actually received the delegated authority, and is the action within the scope of that delegation?

Step 5 — Identify Governing Procedure. Which APA provision — § 553, § 554/556/557, or another provision — or which agency-specific procedural statute or regulation controls the action's production?

Step 6 — Reconstruct the Administrative Record. What evidence, comments, findings, submissions, or materials were actually before the decision-maker? Distinguish the record from post hoc litigation explanations.

Step 7 — Identify Finality. Does the action satisfy the *Bennett v. Spear* two-part test — consummation of the decision-making process, and determination of rights, obligations, or legal consequences?

Step 8 — Identify the Review Mechanism. Is there a required administrative appeal, an optional reconsideration process, a special statutory review channel, or default APA review under § 704?

Step 9 — Apply the Standard of Review. Arbitrary and capricious under § 706(2)(A)? Substantial evidence? Contrary to law? In excess of statutory authority under § 706(2)(C)? A constitutional violation under § 706(2)(B)?

Applied together, these nine steps operationalize the framework stated at the outset of this paper: **statute → delegation → procedure → record → final action → review.**

XIII. Institutional Governance and Record Discipline

The discipline that administrative law imposes on federal agencies — defined delegated authority, documented procedure, a preserved decisional record, reasoned explanation, and mechanisms of review — has instructive value for researchers and administrators working within private institutional governance, including fiduciary and trust administration. That value is methodological, not doctrinal. Public administrative authority and private fiduciary authority arise from different bodies of law: the former from constitutional structure, the APA, and enabling statutes enforced through public judicial review; the latter from private trust instruments, state fiduciary law, and, where applicable, contract. Public administrative agencies are not private trustees, and constitutional administrative law should not be equated with private trust law.

Public administrative authority and private fiduciary authority arise from different bodies of law. The comparison drawn here is methodological: both systems demonstrate why entrusted decision-making benefits from clearly defined authority, documented procedure, preserved records, and mechanisms of review. A researcher or institutional administrator who internalizes the sequence developed in this paper — authority before assertion, procedure before reaction, record before remedy — gains a transferable discipline for evaluating any entrusted decision-making process, public or private, without thereby suggesting that the two are governed by the same law.

XIV. Application: How to Read a Federal Register Document

A Federal Register document is organized into recurring components that a researcher should learn to locate systematically: the issuing *agency* and, where applicable, sub-agency or bureau; the *action* category (e.g., proposed rule, final rule, notice); a *summary* describing the action in plain language; relevant *dates*, including comment deadlines and effective dates; *addresses* for submitting comments or accessing the docket; a “*supplementary information*” section containing the agency’s substantive explanation and reasoning; a statement of *statutory authority*; the regulatory text itself, keyed to specific *CFR* sections; a Regulation Identifier Number (“*RIN*”); and a *docket* number.²⁵

These components allow a researcher to trace a single regulatory action across the full public research chain: from the *Federal Register* notice, to the underlying docket and public comments on *Regulations.gov*,²⁶ to the codified regulatory text in the *electronic Code of Federal Regulations* (“eCFR”),²⁷ to the agency’s own administrative record, and, where the action is final and reviewable, to the judicial record on review. This chain — Federal Register → Regulations.gov → eCFR → agency record → judicial review — is the

²⁵[OPEN FEDERAL REGISTER →](#)

²⁶[OPEN REGULATIONS.GOV DOCKET →](#)

²⁷[VIEW eCFR TEXT →](#)

practical, document-level expression of the six-stage analytical framework developed throughout this paper.

XV. Conclusion

Federal administrative research should not begin with a desired remedy and work backward to find supporting authority. It should begin with the record: classify the action, identify the statutory source of the agency's authority, reconstruct the governing procedure, examine the evidence actually before the decision-maker, determine whether the action is final, and identify the applicable mechanism and standard of review. Each stage constrains the ones that follow it, and a conclusion reached by skipping a stage — asserting a remedy before establishing finality, or asserting finality before establishing the record — is not a conclusion the record can support.

Record Before Remedy. Procedure Before Reaction. Authority Before Assertion. These are not slogans; they restate, in compressed form, the sequence developed in Parts II through XII: that every conclusion about federal agency action should survive the question of what statute, regulation, administrative record, or judicial authority actually supports it.

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